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[TENTATIVE] ORDER GRANTING PLAINTIFF'S REQUEST FOR ENTRY OF JUDGMENT PURSUANT TO CCP §664.6 AND DENYING ATTORNEY'S FEES

I. INTRODUCTION

Plaintiff Sophie Braunstein ("Plaintiff") filed this action against Defendants Mark Rhodes, Elizabeth Rhodes, and David Rhodes ("Defendants") arising out of a dispute related to the parties' prior personal and professional relationship and musical collaborations.

On March 25, 2026, the parties participated in a Mandatory Settlement Conference ("MSC") and reached a settlement resolving the action. The Court thereafter memorialized the material terms of the settlement in its Minute Order and retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the settlement if necessary.

On May 28, 2026, Plaintiff filed the instant motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 and for attorney's fees. Defendants filed an opposition on June 10, 2026. Plaintiff filed a reply on June 15, 2026.

II. LEGAL STANDARD

Cal. Code of Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

In hearing a § 664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment. (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.)

The Court may interpret the terms and conditions of the settlement (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) “[A] writing is signed by a party if it is signed by … [a]n attorney who represents the party.” (Cal. Civ. Proc. Code § 664.6(b)(2).)

III. ANALYSIS

Procedural issues

As a preliminary matter, Defendants argue Plaintiff failed to file a proper proof of service for the instant motion. Although Plaintiff's proof of service appears deficient, Defendants filed a timely opposition addressing the merits of the motion, thereby demonstrating actual notice of the hearing. Defendants do not contend they were prejudiced by any defect in service. Thus, the Court elects to consider the motion on its merits.

Merits

Plaintiff moves to enforce a settlement agreement pursuant to Code of Civil Procedure section 664.6. Plaintiff contends the parties reached a binding settlement during a MSC on March 25, 2026, and that the Court thereafter memorialized the material terms of the settlement in its Minute Order while retaining jurisdiction pursuant to section 664.6. (Motion, ¶2.) Plaintiff asserts that after the MSC, the parties exchanged drafts of a long-form settlement agreement but disagreed over the scope of the settlement's royalty provision. Plaintiff contends Defendants sought to include additional royalty-related terms that were not part of the settlement reached before the Court. (Motion, ¶¶ 1-17.) Plaintiff requests an order enforcing the settlement consistent with the Court's March 25, 2026, Minute Order and further seeks attorney's fees pursuant to Code of Civil Procedure section 128.5. (Motion, pp. 1-2.)

In opposition, Defendants do not dispute that the parties reached an enforceable settlement at the March 25, 2026, MSC. Defendants contend the parties have simply reached an impasse while negotiating the long-form settlement agreement, specifically regarding the royalties provision. (Opposition., pp. 2-6.) Defendants argue the disputed royalty language is intended to facilitate the exchange of information necessary to address past and future royalty issues and does not constitute an improper expansion of the settlement terms. (Ibid.) Defendants further argue sanctions are unwarranted and request that the Court either permit additional negotiations, continue the matter, or treat the March 25, 2026, Minute Order as the operative settlement agreement. (Opposition., pp. 8-9.)

Code of Civil Procedure section 664.6 authorizes a court to enter judgment pursuant to the terms of a settlement if the parties stipulate in a writing signed by the parties outside the presence of the court or orally before the court. (Code Civ. Proc., § 664.6, subd. (a).) Where a settlement is reached before the court and the court retains jurisdiction, the court may enforce the settlement agreement and resolve disputes concerning the terms actually agreed upon by the parties. (See Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 809-810.) However, section 664.6 does not authorize a court to create material terms upon which the parties never agreed. (Id. at pp. 810.)

Here, the parties do not dispute that they reached a binding settlement during the March 25, 2026, or that the Court retained jurisdiction pursuant to Code of Civil Procedure section 664.6. Rather, the dispute concerns the scope of a single settlement provision relating to royalties.

The Court's Minute Order provides: "As to the album and future royalties, the parties will agree to have a 3rd party or one from each side as an intermediary to handle any and all future royalties that may come from the album." Plaintiff contends this language establishes only a mechanism by which the parties may communicate through designated intermediaries regarding future royalty issues. Defendants, by contrast, seem to contend the disputed language was intended to facilitate the parties' efforts to identify, calculate, and resolve any past or future royalty claims arising from their musical projects.

The Court agrees with Plaintiff. The language reflected in the Minute Order is narrow. It provides only that the parties utilize a third party or designated representatives as intermediaries regarding future royalties. Nothing in the language of the Minute Order references royalty accountings, audits, financial disclosures, ownership determinations, publishing rights, payment records, Hallwood Media authorizations, royalty-governance procedures, or other substantive obligations proposed during the parties' subsequent negotiations.

The parties' post-settlement exchange of draft agreements demonstrates that they were unable to reach agreement regarding these additional provisions. However, the fact that the parties continued negotiating does not establish that such provisions were part of the settlement reached before the Court. Rather, the evolving drafts reflect that the parties had differing views regarding matters not expressly memorialized in the Court's Minute Order. Under section 664.6, the Court's role is to enforce the settlement actually reached, not to impose additional terms proposed during the drafting process.

The Court recognizes the practical concerns raised by Defendants regarding future royalty disputes and the exchange of information necessary to evaluate any monies allegedly owed. Those concerns, however, do not permit the Court to expand the settlement beyond the terms actually agreed upon by the parties. The Court encourages the parties to continue working through their designated representatives to resolve any royalty-related issues without further litigation. Should those efforts prove unsuccessful, the parties remain free to pursue their respective claims in a separate action.

Based on the foregoing, the Court GRANTS the motion. The settlement shall be enforced consistent with the terms reflected in the Court's March 25, 2026, Minute Order, which provides: "As to the album and future royalties, the parties will agree to have a 3rd party or one from each side as an intermediary to handle any and all future royalties that may come from the album." The Court finds Plaintiff's proposed interpretation aligns with this language, as it provides for the use of designated intermediaries regarding future royalties.

Attorney’s fees

Plaintiff seeks attorney's fees in the amount of $2,425.00 pursuant to Code of Civil Procedure section 128.5.

The Court declines to award attorney's fees, costs, or sanctions. Although the Court agrees with Plaintiff's interpretation of the settlement agreement, the record reflects a genuine dispute regarding the scope of the royalty provision and the parties' efforts to finalize a long-form settlement agreement. Defendants' position was not so frivolous or lacking in merit as to warrant sanctions under Code of Civil Procedure section 128.5.

The Court DENIES Plaintiff’s request for attorney’s fees.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff’s motion to enforce settlement. The Court DENIES request for attorney’s fees.

Plaintiff is to give notice.

Dated: June 24, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT